

Peetambar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 October 2025 · WRIT - C No. - 23178 of 2025 · **Writ disposed; EE to decide representation in accordance with law.**

HEADNOTE

A 2 kW DVVNL consumer alleging successive unauthorised load increases to 3 kW and 4 kW is permitted to file a fresh representation. Without going into merits, the Executive Engineer, Mathura, is to consider and decide it in accordance with law after hearing, preferably within one month of the representation.

FACTUAL SUMMARY

Peetambar Singh, a consumer of Dakshinanchal Vidyut Vitran Nigam Limited at Mathura, held a 2 kW connection (Account No. 1556043996) and claimed regular payment of dues. From June 2023 the recorded load was raised to 3 kW, which he paid till July 2024; in August 2024 it was raised again to 4 kW. Representations to higher authorities went unanswered. The licensee had earlier sought time to identify Supply Code clauses on increase and decrease of load.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::increase-decrease-load

increase and decrease of load

HOLDING

Without going into the merits, the writ is disposed of. The consumer may file a fresh representation before the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Mathura, within one month; that officer shall consider and decide it in accordance with law after notice and hearing, preferably within one month thereafter. ¶ 5

FLAG Order names no numbered clause; an earlier listing referred only to unspecified Supply Code clauses on increase and decrease of load factor.

PRINCIPLE TAGS

relegate-to-statutory-remedy A 2 kW DVVNL consumer alleging successive unauthorised load increases to 3 kW and 4 kW is permitted to file a fresh representation. Without going into merits, the Executive Engineer, Mathura, is to consider and decide it in accordance with law after hearing, preferably within one month of the representation. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECORDED LOAD WAS ILLEGALLY INCREASED FROM 2 KW TO 3 KW AND THEN 4 KW, AND WHICH CLAUSES OF THE UTTAR PRADESH ELECTRICITY SUPPLY CODE, 2005 GOVERN INCREASE AND DECREASE OF LOAD

Writ disposed without going into merits; Executive Engineer to decide a fresh representation in accordance with law.

¶ 5